ORDINANCE NO. 467

AN ORDINANCE AMENDING ORDINANCE NO. 315 & 381 OF THE CITY OF RECTOR TO RE-ESTABLISH AND RE-LEVY ANNUAL OCCUPATION OR PRIVILEGE TAX ON THE VARIOUS BUSINESSES, TRADES, OCCUPATIONS AND PROFESSIONS CARRIED ON OR CONDUCTED IN THE CITY OF RECTOR, ARKANSAS; PROVIDING FOR THE AMOUNT THEREOF; DECLARING AN EMERGENCY; AND FOR OTHER PURPOSES.

WHEREAS; the City Council has made a careful research and have ascertained that various occupation taxes are inequitable or inadequate; now

THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1. The carrying on of any business, profession, or occupation of whatever kind or nature within the City of Rector, Arkansas, is hereby declared to be a privilege, and from and after the effective date of this ordinance any person, firm or corporation engaged in any business, occupation or profession of whatsoever kind or nature within the City of Rector, shall pay an annual occupation tax for the privilege of carrying on such business, occupation or profession within the City of Rector, Arkansas. The tax as provided herein to be paid by the person, firm or corporation engaging in any business, occupation or profession shall be as follows:

The following taxes are due and payable in advance on or before the 15th day of February, 2000, and on or before each day succeeding February 15th thereafter.

1. Merchants and Traders, whether wholesale or retail, except where otherwise provided herein, shall pay a tax based on the amount of goods, wares and merchandise carried in stock as follows:

Financial Institutions	$	150.00
Factories		150.00
New Car Dealerships		150.00
Corporate Grocery Stores		150.00
Agri-businesses		150.00
Professionals		125.00
Health Care Institutions		125.00
Machine Shops		60.00
Other Commercial Businesses		40.00

Beauty Shops/ Barber Shops	30.00
Produce and Concession Stands (For Profit-Per Year)	20.00

SECTION 2. The City Recorder and Mayor shall notify each merchant, person or corporation not later than the 15th day of January of each year that the said tax is due and payable not later than the15th day of the tax year. The occupational tax shall be paid to the Recorder/Treasurer, at which time the Recorder/Treasurer will issue the license to the person, firm or corporation. Failure to receive any notification shall not be an excuse to pay the tax by February 15, of the tax year and the penalty hereinafter prescribed. The mayor shall also cause to be published before January 15, one notice in a local newspaper that all occupational licenses are due by February 15 of each year.

SECTION 3. The City Recorder shall have the right to examine and audit the stock, books and records of any person, firm or corporation subject to the license fee as provided in this section. Should any person, firm or corporation refuse to allow the city clerk to examine the stocks, books and records, the Recorder shall refuse to issue a license to such person, firm or corporation, provided, however, if a license has been issued the City Recorder shall immediately revoke such license under such circumstances.

SECTION 4. It shall be the duty of the City Recorder and Mayor to determine the amount of tax due and to issue the license, signed by both. Any person, firm or corporation may appear before the City Council at a regular meeting to contest the amount of license as applied to them. Provided, however, nothing contained shall prevent the person, firm or corporation from paying the occupational tax when due. If any part of any license fee collected is considered to be unduly collected or placed in a wrong category, that portion shall be returned to the person, firm or corporation.

SECTION 5. In the event that two or more taxes provided for herein shall apply to any person, firm or corporation operating only a single business, only the largest of the taxes shall apply. However, any person, firm or corporation, engaging in more than one business, which are conducted separately, and for each such business, profession or occupation shall be taxed separately.

For the purpose of determining whether a person, firm or corporation conducting more than one business, the following two rules shall be applicable.

A. The person, firm or corporation is selling, buying, or storing a product listed above in Section 1 in a building separate and apart from the main business, and

B. Separate accounting books, records, tickets, bills are kept for the business by the person, firm or corporation.

SECTION 6. It shall be unlawful for any person, firm or corporation, whether as principal or agent to commence, engage in or carry on any of the aforesaid business, occupations, corporations within the City of Rector without having first paid the privilege tax and procured a license therefor.

SECTION 7. Any person, firm or corporation doing business in the City of Rector, without the payment of the privilege tax herein provided and without having been issued a license to transact its business shall upon conviction be deemed guilty of a misdemeanor and shall be fined a sum not less than $5.00 nor more than $15.00 and each day shall constitute a separate offense.

SECTION 8. If the occupational licenses are not paid by February 15, of each year, the penalty for the delinquency shall be as follows:

If paid between February 16 and March 15	$ 5.00 penalty
March 16-April 15	$10.00 penalty

After April 15, the amount of occupational license shall be double. Providing further that if any city official knowingly permits any person, firm or corporation to operate without a license shall be guilty of a misdemeanor and shall be subject to a fine of not less than $100.00.

SECTION 9. The license issued hereunder shall not be transferred to any other person, firm or corporation.

SECTION 10. Any license that is issued shall expire on February 15 of the following year, provided that if a person, firm, or corporation applies for a license after January 1 of each year, a license shall be issued at no charge to expire on February 15 of that same year. If any person, firm or corporation applies for a license within 6 months after February 15th, the full tax shall be paid. If application is made after August 15th, of any year and before January 1 of the following year, one-half of the tax due shall be paid. Any person, firm or

corporation that begins operating where no license shall have ever been issued shall apply to the City Recorder for a license.

SECTION 11. Nothing contained in this Act shall permit an occupational tax to be collected from a person, firm or corporation that has ceased to operate as of February 15th of each year. Providing further that no part of any occupational tax shall be refunded if any person, firm or corporation shall cease to operate after a license has been issued regardless of the number of days that said person, firm or corporation was operating.

SECTION 12. It shall be unlawful for any person to knowingly and willfully make any false written affidavit as to the amount of stock on hand or volume of gross receipts, revenues or business, or amount of capital invested in business, or number of employees or vehicles used, or to file such false affidavit with the City Clerk or any license collector or inspector or any deputy license inspector or collector, for the purpose of defrauding the City of Rector by procuring a license for a less sum than is lawfully due by the affiant or his principal.

SECTION 13. Should any word, section or part of a section or provision of this ordinance be for any reason held unconstitutional, void or invalid, it shall not affect the validity of any other word, section or provision hereof, which is itself not void or invalid.

Emergency Clause, Original Ordinance No. 315 and 381 and all ordinances in conflict herewith are hereby amended and because of immediate necessity for the immediate preservation of public peace, health and safety of the City, an emergency is hereby declared to exist and this ordinance shall be in full force and effect immediately.

Approved this 6TH day of December, 1999.

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Mayor

ATTEST:

Kenneth R Burns

City Recorder-Treasurer